



CHAPTER cxvi.

An Act to authorise the council for the urban district of A.D. 1903.
Frinton-on-Sea in the county of Essex to construct and
maintain sea walls and other works at Frinton-on-Sea
and to improve and regulate the sea front of the said
district and for other purposes. [21st July 1903.]

WHEREAS the urban district of Frinton-on-Sea in the county
of Essex is an urban district within the meaning of the
Local Government Act 1894 and is under the jurisdiction of the
council for the urban district of Frinton-on-Sea (in this Act called
“the Council”):

And whereas the Council have lately acquired certain of the
lands on the sea front abutting on the cliff and known as “the
Greensward” and the cliffs and beach as and for recreation grounds
for the benefit of the inhabitants of Frinton-on-Sea and all the
property rights and interest of Richard Powell Cooper (if any) in
the foreshore fronting the same:

And whereas the sea has for many years encroached upon
the cliff fronting the said district and it is expedient that the
Council be authorised to construct the sea defence works herein-
after described and to improve and make regulations for the use
of the portions of the Greensward aforesaid and the said cliffs
and foreshore and that powers be conferred upon the Council
as hereinafter contained in that behalf:

And whereas the purposes of this Act cannot be effected
without the authority of Parliament:

And whereas estimates have been prepared by the Council of
the amount required for carrying into effect the powers by this Act
conferred upon the Council in connection with the sea defence
works and improvement of the cliffs and Greensward by this Act:
authorised including the cost of the acquisition of the Greensward.

A.D. 1903. and the existing kiosk thereon and the purchase of land required for such works and such estimates amount to eighteen thousand eight hundred and sixty pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-fifth day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the *East Essex Advertiser* and *Clacton News* a local newspaper published and circulating in the district (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further meeting held in pursuance of a similar notice on the twenty-fourth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided by Schedule III. annexed to the Public Health Act 1875 with respect to resolutions of owners and ratepayers under that Act consented to the promotion of the Bill for this Act :

And whereas plans and sections describing the lines situations and levels of the works by this Act authorised and the lands intended to be taken or used compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of lands required or which may be taken or used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Essex and are in this Act referred to as "the deposited plans sections and book of reference" :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

[3 EDW. 7.] *Frinton-on-Sea Sea Defences Act, 1903.* [Ch. cxvi.]

and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):— A.D. 1903.

1. This Act may be cited as the Frinton-on-Sea Sea Defences Act 1903. Short title.

2. The Lands Clauses Acts and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof are so far as the same are applicable for the purposes of and are not expressly varied by or inconsistent with this Act incorporated with and form part of this Act. Incorporation of general Acts.

3. In this Act unless the subject or context otherwise requires— Interpretation.

“The district” means the urban district of Frinton-on-Sea;

“The Council” means the council for the urban district of Frinton-on-Sea;

“The clerk” means the clerk of the Council;

The “district fund” and “general district rate” mean the district fund and general district rate of the district;

“Greensward” means lands and property acquired by the Council lying between the Esplanade or Marine Parade and the edge of the cliff;

“Cliff” means the area extending from the top of the cliff fronting the district to the foot of the seawall and pitching and facing by this Act authorised as shown on the deposited plans;

“Seashore” means and includes the seashore and the foreshore and all the beach and sands lying between the cliff as above defined and low-water mark of ordinary spring tides;

“Sea defence rates” means the rates by this Act authorised to be levied by the Council;

“The Vagrancy Acts” means the Vagrancy Act 1824 and any Act for the time being in force amending the same:

Words to which meanings are assigned in the enactments incorporated with this Act or which have therein special meanings have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Act in the provisions herewith incorporated of the Railways Clauses Consolidation Act 1845 the expression “the railway” means the sea wall and works by this Act authorised and the expression “centre of the railway” means any part of such sea wall and works and the expression “the company” means the Council.

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Power to
execute
works.

4. Subject to the provisions of this Act the Council may make and maintain and from time to time improve in the lines and according to the levels shown on the deposited plans and sections the sea wall and other works hereinafter described and all works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose.

The works above referred to are—

- (1) The continuation eastward of the pitching and facing of the cliff from the point at which the pitching and facing now existing terminates near the western end of the Greensward to a point two hundred and seventy yards or thereabouts eastward of the termination of such existing pitching and facing :
- (2) A sea wall commencing at the point last above described and terminating at or about the northern end of the stone groyne known as the " Walton Groyne " :
- (3) The pitching and facing of the cliff from the termination of the said sea wall for a distance of three hundred and fifty yards or thereabouts eastward to the eastern boundary of the district :
- (4) In connection with and as part of the said works the cutting down pitching facing straightening and levelling of the cliff above and adjoining such works :
- (5) All necessary and convenient groynes embankments piers jetties buttresses culverts intercepting and other drains cuts roads approaches landing places stairs lifts footpaths and other works and conveniences.

Accesses to
and from
shore &c.

5. During the construction of the sea wall by this Act authorised on or near the foreshore and also at all times after completion thereof the Council shall make and permanently maintain at their own expense and to the satisfaction of the Board of Trade for the free use of the public on the seaward side of the sea wall such boatslips or other facilities for boats and for passengers landing therefrom or embarking thereon as the Board of Trade may from time to time direct or approve.

For pro-
tection of
Walton-on-
the-Naze
Urban Dis-
trict Council.

6. Nothing in this Act contained shall be construed to authorise the Council to commence or carry out any works by this Act authorised within the parish of Walton-on-the-Naze except with the consent in writing of the Walton-on-the-Naze Urban District Council first had and obtained.

[3 Edw. 7.] *Frinton-on-Sea Sea Defences Act, 1903.* [Ch. cxvi.]

7. The Council in lieu of acquiring any of the foreshore or cliff included within the limits of deviation shown on the deposited plans for the purpose of constructing and maintaining the pitching and facing (Work No. 3) by this Act authorised may acquire such easements and rights in such foreshore and cliff as they may require for the construction and maintenance of the said work and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the provisions of the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement shall extend and apply to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

A.D. 1903.

Council may
acquire
easement
only in cer-
tain fore-
shore &c.

8. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council may after ten days' notice to the owners lessees and occupiers of the lands in question apply to a court of summary jurisdiction for the correction thereof and if it appear to such court that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in such certificate state the particulars of any such omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Essex and a duplicate thereof shall also be deposited with the clerk of the Council. Such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the Council along with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Council may take the lands and execute the works in accordance with such certificate.

Correction of
errors &c. in
deposited
plans and
book of
reference.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the Lands Clauses Acts with respect to lands and rentcharges as far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
take ease-
ments &c. by
agreement.

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Power to
deviate.

10. The Council may in the construction of the works by this Act authorised and shown on the deposited plans and sections deviate from the lines thereof to any extent not exceeding ten yards and may deviate from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards. Provided that no lateral deviation seawards below high-water mark shall be made from the line of the sea wall by this Act authorised without the consent in writing of the Board of Trade.

Power to
alter roads
&c.

11. The Council may for the purpose of making and maintaining the works by this Act authorised cross divert alter or stop up whether temporarily or permanently all such roads highways footpaths landing places pipes sewers drains channels streams and watercourses within the limits of deviation shown on the deposited plans as it may be necessary or convenient to cross divert alter or stop up for that purpose and in the exercise of such powers the Council shall do as little damage as may be and the provisions of section 308 of the Public Health Act 1875 shall apply as if acts done under the authority of this section were done in the exercise of the powers of that Act.

Period for
compulsory
purchase of
lands.

12. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Restriction
on taking
houses of
labouring
class.

13. The Council shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December last but have been or shall be subsequently so occupied.

If the Council acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the word "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers

and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others, except members of their own family and persons other than domestic servants, whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them. A.D. 1903.

14.—(A) The Council may from time to time lay out improve drain level and plant the Greensward and the cliff and may— Power to lay out and improve cliff.

- (a) Purchase and maintain the existing kiosk thereon;
- (b) Make and erect and maintain paths and shelters thereon; and
- (c) Erect maintain and furnish and equip kiosks refreshment rooms lavatories and other works and conveniences on the cliff;

and may charge for admission to any such kiosks lavatories or other conveniences. Provided that the Council shall not erect any new buildings of any kind on the Greensward except shelters nor lay out any new paths thereon without from time to time previously obtaining the consent of the owners and ratepayers of the district by a poll to be taken in manner directed by the Public Health Act 1875.

(B) The Council may let any such kiosk and refreshment room with their appurtenances belonging to them or under their control to any person for such term not exceeding three years at any one time at such rent payable, at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Council may think fit.

15. The Council may place or authorise any person or persons to place seats or chairs on the Greensward cliff and seashore and on any part of the sea wall and works by this Act authorised for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats and chairs and for preventing injury or damage thereto. Power to provide and let chairs.

16. The moneys (if any) received by the Council as rent for any kiosk or refreshment room let by them as aforesaid or from the admission of any persons to any kiosk lavatory or other convenience or for the use of or for authority to provide chairs shall be carried as regards moneys received as rent for the existing kiosk to the credit of the sea defence account to be kept by the Application of moneys received for admission.

A.D. 1903. Council as hereinafter provided and as regards all other moneys so received to the credit of the district fund.

Greensward cliff &c. to be deemed streets.

17. The Greensward cliff and seashore and the sea wall and works by this Act authorised shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:—

Every common prostitute or night walker, loitering and importuning passengers for the purpose of prostitution:

Every person who wilfully and indecently exposes his person:

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language:

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire:

Every person who throws or lays any dirt litter ashes or night soil or any carrion fish offal or rubbish on any street.

Byelaws as to seashore.

18. The Council may make and enforce byelaws for the prevention of danger obstruction nuisance or annoyance to persons using the Greensward cliff and seashore and in particular may by such byelaws—

(1) Regulate the erection or placing on the Greensward cliff and seashore or on such part or parts thereof as may be prescribed by such byelaws of any booths tents sheds stands and stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals or persons or mechanically and the playing of any games on the Greensward cliff and seashore and generally regulate the user of the Greensward cliff and seashore for such purposes as shall be prescribed by such byelaws;

(2) Regulate the selling and hawking of any article commodity or thing on the Greensward cliff and seashore;

(3) Regulate the user of the Greensward and seashore for riding and driving;

(4) Regulate or restrict the playing of musical instruments on the Greensward cliff and seashore; and

- (5) Provide for the preservation of order and good conduct among persons frequenting the Greensward cliff and seashore. A.D. 1903. —

19. Section 171 of the Public Health Act 1875 and section 69 of the Town Police Clauses Act 1847 incorporated thereby in so far as they relate to bathing machines shall so far as applicable extend and apply to tents and huts for bathing within the district. Tents and huts for bathing.

20. The Council may prohibit the display of any advertisement on the external part of any bathing machine tent or hut and any person who shall commit a breach of such prohibition shall be liable to a penalty not exceeding five pounds. Power to prohibit advertisements on outside of bathing machines &c.

21. The Council may make byelaws—

- (1) For appointing and limiting the places on the seashore from which persons of each sex may bathe without using a bathing machine or tent and for prohibiting the use of any other place on the seashore for bathing without using a bathing machine or tent ;
(2) For the preservation of decency and order at public bathing places on the seashore and for appointing and limiting the places on the seashore from which persons of the male and female sex may bathe together and from which they may bathe separately ;
(3) For regulating the hours during which bathing may take place from public bathing places on the seashore and for prohibiting the use of such places except during the hours so fixed ; and
(4) For prescribing the use of decent and sufficient bathing garments.

Byelaws as to bathing.

22. Every part of the Greensward cliff and seashore shall for the purposes of the Vagrancy Acts be deemed to be a public place. Greensward cliff and seashore to be deemed public place for certain purposes.

23. The Council may require the owner or lessee of any bathing machine to provide or employ boats boatmen and attendants and to provide life-saving apparatus for the purpose of ensuring the safety of bathers and may prescribe the qualification of such boatmen and attendants and the Council may employ and pay boatmen for the purpose of protecting persons whilst bathing. For protection of bathers.

24.—(1) The Council may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or Power to license pleasure boats &c.

A.D. 1903. navigation of such boats and vessels and may charge a fee of not exceeding one shilling for every such licence.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended or revoked or endorsed by the Council whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) No person shall act as boatman or assist in the charge or navigation of any pleasure boat or pleasure vessel when let for hire or when carrying passengers for hire who is not licensed by the Council as aforesaid.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted on a conspicuous part of the said boat or vessel the number of persons which it is licensed to carry and every such boat or vessel licensed as a sailing boat or vessel shall carry two life-buoys.

(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable on summary conviction to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the granting withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to a petty sessional court held for the district after the expiration of two clear days from the date of such granting withholding suspension revocation or endorsement. Provided that the person so aggrieved shall give twenty-four hours' written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they see fit and to award costs to the successful party such costs to be recoverable summarily as a civil debt.

(9) Offences against the provisions of this section and penalties imposed or recoverable thereunder may be prosecuted and recovered summarily. A.D. 1903.

25. Nothing in this Act shall prejudice lessen or affect the provisions of an indenture made the seventh day of December one thousand eight hundred and ninety-three between Richard Powell Cooper of Shenstone Court near Lichfield Staffordshire Esquire (therein referred to as "the lessor") and Harry Wilkinson of Torquay House Clacton-on-Sea Essex builder (therein referred to as "the lessee") or the rights and privileges thereby reserved to the said lessor or to the said lessee or their respective assigns. Saving rights under indenture of 7th December 1893.

26. The Council may from time to time independently of any other borrowing power borrow at interest on the security of the sea defence rates any sum or sums of money required for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):— Power to borrow.

(A) For the construction of the works by this Act authorised and the improvement and laying out of the Greensward and cliff including the cost of the acquisition of the Greensward and the existing kiosk thereon and the purchase of land required for such works, eighteen thousand eight hundred and sixty pounds;

(B) For repaying the sums borrowed and now owing for the purpose of erecting groynes the sum of one thousand seven hundred and sixty pounds;

(C) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for the purpose:

And with the approval of the Local Government Board such further moneys as the Council may require for the purposes (A) above mentioned.

In order to secure the repayment of the moneys borrowed under this section and the payment of interest thereon the Council may mortgage or charge the sea defence rates.

27. The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another and any money borrowed by the Council in manner by this section authorised shall be charged upon and shall be paid out of the sea defence rates and such rates shall be deemed to be the local rate as defined by the Local Loans Act 1875. Power to borrow under Local Loans Act 1875.

A.D. 1903.

Every such loan shall be discharged within the prescribed periods and where any such loan is made repayable by means of a sinking fund the provisions of the section of this Act whereof the marginal note is "Mode of payment off of moneys borrowed" shall apply to such sinking fund in lieu of the provisions of section 15 of the Local Loans Act 1875.

Certain regulations of Public Health Act as to borrowing not to apply.

28. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Form of mortgage.

29. Every mortgage authorised to be made under this Act shall be by deed truly stating the date and consideration and the time and place of payment and shall be sealed by the common seal of the Council and made according to the form contained in Part I. of the Schedule to this Act or to the like effect.

Transfer of mortgages.

30. Any mortgagee or other person entitled to any mortgage under this Act may transfer his estate and interest therein to any other person by deed duly stamped truly stating its date and the consideration for the transfer and such transfers may be according to the form contained in Part II. of the Schedule to this Act or to the like effect.

Provisions of Public Health Act as to mortgages to apply.

31. Section 237 (Register of mortgages) and section 238 (Transfer of mortgages) as amended by the section of this Act of which the marginal note is "Transfer of mortgages" and section 239 (Receiver may be appointed in certain cases) of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act.

Period for payment off of moneys borrowed.

32. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purposes (A) above-mentioned fifty years from the date of the borrowing of the same :

As to moneys borrowed for the purpose (B) above-mentioned ten years from the date of the borrowing of the same :

As to moneys borrowed for any of the purposes of this Act with the approval of the Local Government Board within such respective periods not exceeding sixty years as that Board may think fit to sanction :

As to moneys borrowed for the payment of the costs charges and expenses provided for by the section of this Act whereof the marginal note is "Costs of Act" within five years from the date of the borrowing of the same. A.D. 1903.

33.—(1) The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first equal annual payment to the sinking fund shall be made within one year after the date of borrowing the sum in respect of which the payment is made. Mode of
payment off
of moneys
borrowed.

(2) The following provisions shall apply in regard to any sinking fund to be formed under this Act:—

(A) The Council in every year shall appropriate and set apart out of the sea defence rates such equal annual sums as will with the accumulations thereof by way of compound interest at a rate not exceeding three pounds per centum per annum (hereinafter in this section referred to as "the prescribed rate") be sufficient to pay off the principal moneys borrowed (so far as the same are repayable by means of a sinking fund) within the prescribed period:

(B) The yearly sums so appropriated and set apart shall be invested from time to time and accumulated in the way of compound interest by investing the same and the dividends interest and annual income thereof respectively in any security in which trustees are by law authorised to invest or in mortgages stock debentures or other securities issued by any local authority as defined in section 34 of the Local Loans Act 1875 (other than securities of the Council and annuities rentcharges and securities transferable by delivery) and if and as often as the income derived from such investment is not equal to the income which would be derived therefrom at the prescribed rate any deficiency shall be made good out of the sea defence rates and if and so often as the income derived from such investments is in excess of the income which would be derived therefrom at the prescribed rate any such excess may be applied as part of such equal annual payments:

(c) The Council may at any time apply the whole or any part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment of which it was set

A.D. 1903.

aside in such order and manner as they deem proper. Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as hereinbefore prescribed until the whole of such borrowed moneys are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the rate per centum on which the equal annual payments to the sinking fund are based:

(D) Whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the Council may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto.

Power to
reborrow.

34. If the Council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may from time to time reborrow the same but all moneys so reborrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such reborrowing.

Protection
of lender.

35. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Application
of moneys
borrowed.

36. Moneys borrowed by the Council under this Act shall be applied only to the several purposes in respect of which they were respectively authorised to be borrowed and to which capital is properly applicable.

Annual re-
turn to Local
Government
Board.

37.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is

required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1903.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

38. Any expenses of the execution by the Council of this Act in relation to the erection maintenance and equipment of kiosks refreshment rooms lavatories and conveniences on the cliff and Greensward and the expenses of carrying into effect the provisions

Expenses of execution of Act not otherwise provided for.

A.D. 1903.

of the sections of this Act of which the marginal notes are "Byelaws as to seashore" "Byelaws as to bathing" "For protection of bathers" and "Power to license pleasure boats &c." shall be defrayed out of the general district rate and any other expenses of such execution with respect to which no other provision is made may be defrayed by the Council out of the sea defence rates.

Power to make and levy rates.

39. In order to provide for the payment of the annual interest upon any moneys to be borrowed by the Council under this Act and of the annual or other instalments of principal or principal and interest and payments into the sinking fund in respect thereof and the annual expenses of the Council in carrying this Act into execution with respect to which no other provision is made the Council may from time to time as occasion may require make by writing under their common seal and levy (in addition to any other rates leviable by them) rates or assessments (to be called "sea defence rates") to be made and levied as hereinafter provided upon the owners or occupiers of all kinds of property for the time being by law assessable to any rate for the relief of the poor within the district (including all property which if at the time beneficially occupied would be so assessable) and such rates may be made and levied either prospectively in order to raise money for the payment of future charges thereon or retrospectively in order to raise money for the payment of charges thereon incurred at any time within six months before the making of the rate and in calculating the period of six months during which the rate may be made retrospective the time during which any appeal or other proceeding relating to such rate is pending shall be excluded.

Application of portions of Public Health Act 1875 as to rates &c.

40. Subject to the provisions of this Act the following provisions of the Public Health Act 1875 shall apply and have effect as if the sea defence rates were general district rates (that is to say) :—

So much of section 210 (Making general district rate) as relates to the publication of notice of the intention to make a rate and to the time when it is intended to make the same and the place where a statement of the proposed rate is deposited :

Section 211 (Assessment &c. of general district rate) :

Section 212 (Inspection of poor rate books for purpose of assessment) :

Section 219 (Rates to be open to inspection) :

Section 220 (Description of owner or occupier in rates) :

Section 221 (Rates may be amended):

A.D. 1903.

Section 222 (Publication and collection of rates):

Section 223 (Evidence of rates):

Section 226 (Saving for existing agreements):

Section 269 (Appeal to quarter sessions):

Provided always that subsections (1) (b) and (1) (c) of the said section 211 shall not apply to sea defence rates nor shall so much of subsection (2) of the said section 211 as provides that the rate shall not be charged on any person in respect of unoccupied premises apply to sea defence rates but in every such case the same may be recovered either from the next occupier or the person who would be entitled to the rent thereof if the same were occupied.

41. The sea defence rates shall be made and levied in the following proportions on the several descriptions of property next hereinafter mentioned (that is to say):—

Proportions
in which pro-
perty to be
rated.

(A) Upon all property assessable to the general district rate on less than the full net annual value thereof (including property which if at the time beneficially occupied would be so assessable)—

(1) In the case of land not built upon and not parcelled out for building purposes a sum of one shilling in the pound on the rateable value according to the parochial valuation or assessment list for the time being in force and in the case of land occupied as a railway constructed under the powers of any Act of Parliament for public conveyance a sum of sixpence in the pound on such rateable value;

(2) In the case of land parcelled out for building but not built upon an annual rate or sum upon the extent of building frontage of not exceeding sixpence per foot frontage:

(B) Upon all property assessable to the general district rate on the full net annual value thereof a sum of two shillings in the pound on such value according to the parochial valuation or assessment list for the time being in force:

And so in proportion for any lower or higher rates or assessments which may from time to time be required.

42. The Council before proceeding to make sea defence rates under this Act shall cause an estimate to be prepared of the money required for the purposes in respect of which the rate is to

Estimate to
be prepared
before mak-
ing rate.

A.D. 1903. — be made showing the sum so required and the rateable value of the property assessable and the amount of rate which for those purposes it is necessary to make and the estimate so made shall forthwith after being approved of by the Council be entered in the rate book and be kept at the office of the Council and open to public inspection during office hours thereat but it shall not be deemed part of the rate nor in any respect affect the validity of the same.

Occupiers
may deduct
rate from
rent paid.

43. Every lessee or occupier of any buildings or land not being a lessee for a greater period than twenty-one years unexpired at the time of any rate under this Act becoming payable may deduct the amount of any rate made under this Act and actually paid by him from the then next or any subsequent rent which may become payable by him in respect of the building or land for which such rate may have been paid by him.

Recovery of
rates &c.

44. Sea defence rates may be enforced and recovered by the same remedies as if the same were general district rates levied under the powers of the Public Health Act 1875 or at the option of the Council by an action in any court of competent jurisdiction.

Application
of portions
of Public
Health Act
1875 relat-
ing to legal
proceedings.

45. Section 259 (Appearance of local authorities in legal proceedings) section 260 (Name of local authority need not be proved) section 261 (Demands below fifty pounds may be recovered in county courts) section 262 (Proceedings not to be quashed for want of form) and section 263 (False evidence punishable as perjury) shall extend and apply to proceedings under this Act and to rates made or things done or omitted to be done under or relating to the execution of this Act.

Protection
of members
of Council.

46. No matter or thing done and no contract entered into by the Council and no matter or thing done by any member of the Council or by any officer of the Council or other person, whomsoever acting under the direction of the Council shall if the matter or thing were done or the contract were entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatever and any expenses incurred by the Council or such member officer or other person acting as aforesaid shall be borne and repaid as part of the expenses of the execution of this Act. Provided that nothing in this section shall exempt any member of the Council from liability to be surcharged with the amount of any payment which may be disallowed by the auditor in the accounts of the Council and which such member authorised or joined in authorising.

47. If any of the works constructed by the Council under the powers of this Act on in over through or across tidal lands or tidal waters are abandoned or suffered to fall into decay the Board of Trade may abate and remove the same or any part of them and restore the site thereof to its former condition at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily.

A.D. 1903.

Abatement
of works
abandoned
or decayed.

48. The Council shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant-secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Council and the amount of such costs and charges shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

49. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Council under the powers of this Act on in over through or across tidal lands or tidal waters or of the intended site of any such work the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily.

Survey of
work by
Board of
Trade.

50. In the case of any notice or demand under this Act requiring authentication by the Council and in the case of licences granted by the Council under this Act the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always

Form and
service of
notices &c.

A.D. 1903. that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Informations
by whom to
be laid.

51. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Council authorised in that behalf or by the clerk to the Council.

General pro-
visions as to
byelaws.

52. All byelaws from time to time made by the Council under the powers of this Act shall be made under and according to the provisions contained in sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority. Provided that as regards byelaws made under the section of this Act of which the marginal note is "Byelaws as to seashore" the Secretary of State shall be substituted for the Local Government Board. Provided further that no byelaws affecting the foreshore below high water mark shall come into operation until the consent of the Board of Trade has been obtained thereto.

As to appeal.

53. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate or consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable Court of Quarter Sessions under and according to the provisions of the Summary Jurisdiction Acts.

Recovery of
penalties.

54. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Application
of penalties.

55. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Council be paid to the treasurer of the Council and be by him carried to the credit of the separate account to be kept by the Council in respect of the expenses and receipts incurred or arising under this Act.

56. All powers given to the Council by this Act shall be deemed to be in addition to and not in derogation of any other powers conferred on them by the Public Health Acts or other Acts amending the same respectively and such other powers may be exercised in the same manner as if this Act had not been passed. Provided that no person shall incur more than one penalty for the commission of the same offence.

A.D. 1903.

Powers of
Act cumulative.

57. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Council or liable to sea defence rates.

Judges not
disqualified.

58. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings nor relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punishable twice for the same offence.

Saving for
indictments
&c.

59.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

60. The Council shall keep a separate account to be called the sea defence account of all payments made and sums received by them in respect of the expenses and receipts incurred or arising under this Act which under this Act are to be carried to the credit of the sea defence account or to be defrayed out of the sea defence rates and such accounts shall be made up and balanced annually as at the 31st day of March in each year and shall be audited examined and published in like manner and with the same consequences as the other accounts of the Council are audited examined and published.

Separate
accounts to
be kept and
audited.

A.D. 1903.

Saving
rights of
Crown.

61. Nothing herein contained shall authorise the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty.

Costs of Act.

62. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (including the costs and charges and expenses preliminary to and of and connected with the compliance with the provisions of the Borough Funds Act 1872 with respect to the Bill for this Act) or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the sea defence rates or out of moneys borrowed under the powers of this Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

PART I.

FORM OF MORTGAGE OF RATES.

By virtue of the Frinton-on-Sea Sea Defences Act 1903 we the Council for the urban district of Frinton-on-Sea in consideration of the sum of _____ paid to the treasurer of the urban district of Frinton-on-Sea by A.B. of _____ for the purposes of the said Act do grant and assign unto the said A.B. his executors administrators and assigns such proportion of the sums arising or accruing by virtue of the said Act from sea defence rates authorised by that Act to be levied within the said urban district as the said sum of _____ doth or shall bear to the whole sum which is or shall be borrowed on the credit of the said rates to hold to the said A.B. his executors administrators and assigns from the day of the date hereof until the said sum of _____ with interest at the rate of _____

per centum per annum for the same shall be fully paid and satisfied And it is hereby declared that the said principal sum shall be repaid on the _____ day of _____ at [place of payment]

Dated this _____ day of _____ one thousand nine hundred _____ and _____

[To be sealed with the common seal of the said urban district council.]

PART II.

FORM OF TRANSFER OF MORTGAGE.

I A.B. of _____ in consideration of the sum of _____ paid to me by C.D. of _____ do hereby transfer to the said C.D. his executors administrators and assigns a certain mortgage bearing date the _____ day of _____ and made by the Council for the urban district of Frinton-on-Sea under the Frinton-on-Sea Sea Defences Act 1903 for securing the sum of _____ and interest thereon at _____ per centum per annum [or if such transfer be by endorsement on the mortgage insert instead of the words immediately following the word "assigns" the

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A.D. 1903. — within security] and all my right estate and interest in and to the money thereby secured and in and to the rates thereby assigned.

In witness whereof I have hereunto set my hand and seal this
day of one thousand nine hundred and

A.B.

L.S.

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